Data Processing Agreement (GDPR Art. 28) and Sub-processor Register

Standard Data Processing Agreement

The standard Data Processing Agreement is offered under Article 28 of Regulation (EU) 2016/679 and its United Kingdom equivalent. It is executed as an annex to the master agreement and does not require negotiation for the great majority of customers. Version 2026.05 was published on 20 May 2026 and is the version offered to all new and renewing customers.

Roles and instructions

The customer is the controller and the service organisation is the processor in respect of personal data contained in message content, message metadata and administrative event records. The agreement records the subject matter, duration, nature and purpose of processing, the types of personal data and the categories of data subjects, in the form Article 28(3) requires. The organisation processes only on the customer's documented instruction, which comprises the agreement itself and the tenant configuration the customer sets.

Article 28(3) obligations

Article 28(3)	Obligation	Where addressed
(a)	Process only on documented instruction, including for transfers.	Clause 3, Clause 9
(b)	Ensure persons authorised to process are bound by confidentiality.	Clause 4
(c)	Take measures required by Article 32.	Clause 5 and Annex II
(d)	Respect conditions for engaging another processor.	Clause 6 and Annex III
(e)	Assist the controller in responding to data subject requests.	Clause 7
(f)	Assist with Articles 32 to 36, including breach notification.	Clause 8
(g)	Delete or return personal data at the end of provision.	Clause 10
(h)	Make available information to demonstrate compliance and allow audits.	Clause 11

Sub-processor register, version 2026.05

Sub-processor	Purpose	Processing location
Fictitious infrastructure provider	Compute, storage and network for the service	Elected residency zone
Fictitious managed key service	Storage and use of wrapped key material	Elected residency zone
Fictitious observability provider	Operational telemetry; no message content	European Union
Fictitious transactional messaging provider	Delivery of registration notification messages	European Union, United States
Fictitious support platform provider	Support ticketing and correspondence	European Union

Sub-processor	Purpose	Processing location
Fictitious identity provider	Workforce authentication for service personnel	European Union

Sub-processor change process

The register is published and versioned. Customers may subscribe to change notifications. A new sub-processor is announced at least thirty days before it begins processing, and the announcement states the purpose and the processing location. A customer that objects on reasonable data protection grounds within the notice period may raise the objection under Clause 6; where the objection cannot be resolved, the customer may terminate the affected service without penalty for the remainder of the term.

International transfer

Where personal data is transferred out of the European Economic Area, the 2021 Standard Contractual Clauses apply in the controller-to-processor module, supplemented by a transfer impact assessment which is available on request. Where personal data is transferred out of the United Kingdom, the International Data Transfer Addendum applies. Customers electing the European Union or United Kingdom residency zones and not enabling cross-zone features will not have message content transferred outside that zone in the ordinary operation of the service.

Assistance with data subject rights

The organisation assists the controller with requests for access, rectification, erasure, restriction, portability and objection. In practice most such requests are satisfied by the controller directly through the tenant administration plane, which supports search and export scoped to a data subject and supports deletion. Where a request cannot be satisfied through the tenant plane, the organisation assists on request within the timescales the agreement sets.

Breach notification

The organisation notifies the controller without undue delay and in any event within 72 hours of becoming aware of a personal data breach affecting that controller's personal data, providing the information Article 33(3) requires to the extent it is then available, and supplementing it as further information becomes available. The notification goes to the security contacts registered against the tenant.